

Peer Response

by [Abdulla Husain Salem Hadna Almessabi](#) - Friday, 12 December 2025, 10:42 AM

The ethical basis of your post is effective as it addresses the responsibilities of Abi to various stakeholders and appropriately characterises the act of selective reporting as a violation of professional ethics, such as the ACM Code (ACM, 2018). I should like to continue your argument and explore the exact mechanism of harm in a selective analysis and the legal doctrine that can bring this ethical violation to the level of professional liability.

Although you are correct that disseminating positive results only helps in misleading marketing, the greater evil is to misguide the scientific process of making decisions. Performing HARKing (Hypothesising After the Results are Known) or cherry-picking a few notable correlations produces a false story on the basis of valid data, and sometimes that can be even more insidious than blatant fabrication (Rubin, 2017). This action is directly against the BCS Code that mandates the members to exercise due regard to... the effective and efficient use of resources (BCS, 2015, p. 3) since it is a misapplication of analytical resources to produce a desired, not a real, result.

Moreover, your argument on possible legal matters is essential. Other than the general consumer protection laws, the professional status of Abi can subject him to the jurisdiction of professional negligence. An example used in common law jurisdictions is that the professional has a duty of care to the person(s) that he or she can reasonably foresee will be impacted by his work. Should Abi intentionally aid in giving a false statement through the omission of material facts on safety, and a consumer suffers loss, he may be found guilty of breaching such a duty (Hedley Byrne and Co Ltd v Heller and Partners Ltd [1964] AC 465). This is a legal idea that supports the moral requirement you outlined.

Thus, your idea to proceed with the course of pushing back and going to ethics panels is not only recommendable but a risk-reducing policy that must be taken. Writing up his concerns and getting institutional support leaves a formal record which proves that he took up his professional judgement, which is one of the major defences against complicity or negligence. In case the top management demands suppression, his ethical obligation of avoiding harm (ACM, 2018) and upholding the public good might actually mean challenging whistleblowing to a regulatory agency, as it is the duty of both the ACM and BCS codes.

References

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Rubin, M. (2017). When does HARKing hurt? Identifying when different types of undisclosed post hoc hypothesising harm scientific progress. *Review of General Psychology*, 21(4), 308-320.

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Your post is right in noting the fact that Abi is at fault with her selective analysis, which is unethical p-hacking, which harms the scientific integrity (Ioannidis, 2005). I would elaborate by citing the systemic commercial pressures that render this temptation rational against the evident way out in professional codes. The Code of Conduct of BCS (2021) puts more emphasis on Public Interest and Professional Integrity rather than the Duty to Relevant Authority and expressly forbids withholding performance information.

So it is not either or but rather a well-thought-out process of action:

1. Principled Reporting: Present one report with all the analyses, and apply his experience to put them into context. He should emphasise the methodological strength of the primary, with respect to results with favourable post-hoc correlations being identified as exploratory and inappropriate to claim health (Greenland et al., 2016).
 2. Institutional Escalation: In case the manufacturer has a motive to withhold the findings, Abi has to move to the ethics board of his institute. This satisfies his Duty to the Profession and is an institutional support that is a highly important form of research governance (Shamoo and Resnik, 2015).
 3. Regulatory Disclosure: Last resort in the event of harm, ethical obligation to notify an authority such as the Food Standards Agency becomes the ethical obligation to safeguard health and various other populations in line with the principle of the use of ACM Code, which is to avoid causing harm (ACM, 2018).
- The bottom line is that Abi is a custodian of evidence. He is mainly responsible to society rather than to business (Gottlieb et al., 2018). This course of action helps him to disseminate the credibility of his profession and to serve its main purpose.

References

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